



CHAPTER 34

An Act to make provision for the abatement of litter.

[7th July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If any person throws down, drops or otherwise deposits **Penalty for leaving litter.** in, into or from any place in the open air to which the public are entitled or permitted to have access without payment, and leaves, any thing whatsoever in such circumstances as to cause, contribute to, or tend to lead to, the defacement by litter of any place in the open air, then, unless that depositing and leaving was authorised by law or was done with the consent of the owner, occupier or other person or authority having the control of the place in or into which that thing was deposited, he shall be guilty of an offence and be liable on summary conviction to a fine not exceeding ten pounds; and for the purposes of this subsection any covered place open to the air on at least one side and available for public use shall be treated as being a place in the open air.

(2) In England and Wales, without prejudice to the powers of any other person, any of the following bodies shall have power to institute proceedings for an offence under this section committed within their area or on land controlled or managed by them, that is to say, the council of a county, county borough, metropolitan borough, non-county borough, urban district, rural district or rural parish, the Common Council of the City of London, a joint body constituted solely of two or more such councils as aforesaid, and a joint board such as is provided for by section 12, 13 & 14 eight of the National Parks and Access to the Countryside Geo. 6. c. 97. Act, 1949.

2 & 3 Eliz.
2. c. 48.

Short title,
extent and
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ment.

(3) In Scotland, an offence under this section may be prosecuted in any court of summary jurisdiction within the meaning of the Summary Jurisdiction (Scotland) Act, 1954, having jurisdiction in the place where the offence was committed.

2.—(1) This Act may be cited as the Litter Act, 1958.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into force at the expiration of the period of one month beginning with the date of its passing.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3*d.* net

PRINTED IN GREAT BRITAIN

(37983)